

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPA037664: MARIA SOTELO vs MOHAMMAD BAGHERI

07/15/2026 in Department 20

Motion for Terminating Sanctions

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Mohammad Bagheri's Motion for Terminating Sanctions

Tentative: Defendant Mohammad Bagheri's Motion for Terminating Sanctions is CONTINUED to August 24, 2026, at 8:20 a.m.

On February 2, 2026, Defendant filed the following motions: (1) Motion to Compel Plaintiff's Responses to Special Interrogatories, Set One; (2) Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One; (3) Motion to Compel Plaintiff's Responses to Request for Production of Documents, Set One; and (4) Motion to Deem Requests for Admission Admitted, Set One. Plaintiff did not oppose the motions or appear at the hearing of April 1, 2026, and as of the date of the hearing had not provided responses to any of the subject discovery.

On April 1, 2026, the Court granted each of the discovery motions, deemed the Requests for Admissions, Set One admitted, and ordered Plaintiff to provide verified, code-compliant answers to the Form and Special Interrogatories and Requests for Production on or before April 13, 2026. Defendant did not provide notice of the Court's ruling until April 13, 2026 but thereafter followed up with emails to Plaintiff's counsel on April 16, 2026, April 23, 2026, and May 4, 2026, seeking the discovery responses by May 13, 2026. Defense counsel then called Plaintiff's counsel on May 14, 2026, and informed the receptionist that Defendant had still had not received the court-ordered discovery responses. The receptionist advised that he would notify Plaintiff's counsel. As of May

20, 2026, Defense counsel had not heard anything from Plaintiff's counsel. Plaintiff has not filed an opposition to the instant motion.

“Disobedience of a court order constitutes an abuse of discovery for which the court may dismiss the action. [Citation]. . . . “ ‘The power to impose discovery sanctions is a broad discretion subject to reversal only for arbitrary, capricious, or whimsical action.... Only two facts are absolutely prerequisite to imposition of the sanction: (1) there must be a failure to comply ... and (2) the failure must be wilful.’ ” [Citation].” (*Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 928-929 citing to *Do it Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns* (1992) 7 Cal.App.4th 27, 36.)

Although notice of the Court's ruling was not provided until the date the court-ordered responses were due, Defense counsel has made four attempts to gain Plaintiff's compliance with the Court's order since that date with no response from Plaintiff's counsel and no notice from Plaintiff's counsel's office/receptionist explaining the failure to respond. It appears that the failure to comply with this Court's April 1, 2026 order is wilful. However, because of the severity of a terminating sanction, the Court will allow Plaintiff the opportunity to do two things: (1) show full compliance with the April 1, 2026 order by providing verified, code-compliant answers to the Form and Special Interrogatories and Requests for Production of Documents as well as all documents responsive to Requests for Production, Set One and (2) explain why the Court should not find that Plaintiff's failure to comply with the Court's order of April 1, 2026 was wilful.

Defendant shall give notice within two court days.